

Court No. - 29

Case :- WRIT - C No. - 25746 of 2019

Petitioner :- M/S Mohan Ice Chiller

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bharat Bhushan Paul, Saurabh Paul

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Saurabh Paul, learned counsel for the petitioner. Sri Baleshwar Chaturvedi, learned counsel has appeared for respondent No.4.

The petitioner is aggrieved by the demand of electricity dues of Rs.10,54,335/- as per the demand notice dated 06.05.2019.

Learned counsel for the petitioner submits that the petitioner wants to get his electricity disconnected and that he is ready and willing to clear the entire outstanding dues provided some reasonable time is allowed to pay the said amount or instalments are fixed in respect thereof.

For the purposes of instalments, the petitioner has a remedy to approach the Executive Engineer concerned under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose of the writ petition with liberty to the petitioner to approach the Executive Engineer within a period of two weeks from today and in case the petitioner so approaches the Executive Engineer shall consider the request of the petitioner in accordance with law and fix instalments if necessary.

Accordingly, the Writ Petition is **disposed off**.

Order Date :- 20.8.2019

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